

**Sixty-ninth Legislative Assembly of North Dakota
In Regular Session Commencing Tuesday, January 7, 2025**

HOUSE BILL NO. 1010
(Appropriations Committee)

AN ACT to provide an appropriation for defraying the expenses of the insurance commissioner; to create and enact a new section to chapter 26.1-23.1 of the North Dakota Century Code, relating to a government self-insurance pool report; to amend and reenact subsection 8 of section 10-04-10 and section 26.1-01-09 of the North Dakota Century Code, relating to fees charged by the securities division and the salary of the insurance commissioner; and to provide for a legislative management report.

BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:

SECTION 1. APPROPRIATION. The funds provided in this section, or so much of the funds as may be necessary, are appropriated from other funds derived from special funds and federal funds, to the insurance commissioner for the purpose of defraying the expenses of the insurance commissioner, for the biennium beginning July 1, 2025, and ending June 30, 2027, as follows:

	<u>Base Level</u>	<u>Adjustments or Enhancements</u>	<u>Appropriation</u>
Salaries and wages	\$10,746,226	\$3,955,150	\$14,701,376
New and vacant FTE pool	0	325,136	325,136
Operating expenses	2,637,667	613,692	3,251,359
Capital assets	0	90,000	90,000
Grants	<u>2,400,000</u>	<u>0</u>	<u>2,400,000</u>
Total other funds	\$15,783,893	\$4,983,978	\$20,767,871
Full-time equivalent positions	47.00	10.00	57.00

SECTION 2. ONE-TIME FUNDING - EFFECT ON BASE BUDGET - REPORT TO THE SEVENTIETH LEGISLATIVE ASSEMBLY. The following amounts reflect the one-time funding items included in the appropriation in section 1 of this Act which are not included in the entity's base budget for the 2027-29 biennium and which the entity shall report to the appropriations committees of the seventieth legislative assembly regarding the use of this funding.

<u>One-Time Funding Description</u>	<u>Other Funds</u>
Radios and x-ray machine	\$90,000
Accrued leave payout	30,000
Fire marshal compensatory time and overtime	<u>20,000</u>
Total other funds	\$140,000

SECTION 3. NEW AND VACANT FTE POOL - LIMITATION - TRANSFER REQUEST. The insurance commissioner may not spend funds appropriated in the new and vacant FTE pool line item in section 1 of this Act, but may request the office of management and budget to transfer funds from the new and vacant FTE pool line item to the salaries and wages line item in accordance with the guidelines and reporting provisions included in House Bill No. 1015, as approved by the sixty-ninth legislative assembly.

SECTION 4. ADDITIONAL INCOME - APPROPRIATION - REPORTING. In addition to the amounts appropriated in section 1 of this Act, any federal funds that become available are appropriated to the insurance commissioner, for the biennium beginning July 1, 2025, and ending June 30, 2027. The insurance commissioner shall report any additional federal funds under this section to the office of management and budget and the legislative council.

SECTION 5. AMENDMENT. Subsection 8 of section 10-04-10 of the North Dakota Century Code is amended and reenacted as follows:

8. Fees. The fee, which must accompany the application, for registration, transfer, or notice filing, and for each annual renewal thereof is:
 - a. For each broker-dealer ~~\$200.00~~\$240.00
 - b. For each agent ~~\$60.00~~\$75.00
 - c. For each investment adviser or federal covered adviser ~~\$100.00~~\$120.00
 - d. For each investment adviser representative ~~\$50.00~~\$60.00

An application to register as a broker-dealer, agent, investment adviser, or investment adviser representative may, with the consent of the commissioner, be withdrawn upon written application.

SECTION 6. AMENDMENT. Section 26.1-01-09 of the North Dakota Century Code is amended and reenacted as follows:

26.1-01-09. Salary of commissioner.

The annual salary of the commissioner is ~~one hundred thirty thousand dollars through June 30, 2024, and one hundred thirty-five thousand two hundred dollar~~thirty-nine thousand two hundred fifty-six dollars through June 30, 2026, and one hundred forty-three thousand four hundred thirty-four dollars thereafter.

SECTION 7. A new section to chapter 26.1-23.1 of the North Dakota Century Code is created and enacted as follows:

Government self-insurance pool - Report.

A government self-insurance pool organized under this chapter shall provide a report to the legislative management by September thirtieth of each even-numbered year. The report must include information on activities of the pool, including the claims activity, claims payment history, balances, a history of complaints, and executive staff and board compensation.

Speaker of the House

President of the Senate

Chief Clerk of the House

Secretary of the Senate

This certifies that the within bill originated in the House of Representatives of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as House Bill No. 1010.

House Vote: Yeas 81 Nays 8 Absent 5

Senate Vote: Yeas 45 Nays 2 Absent 0

Chief Clerk of the House

Received by the Governor at _____ M. on _____, 2025.

Approved at _____ M. on _____, 2025.

Governor

Filed in this office this _____ day of _____, 2025,

at _____ o'clock _____ M.

Secretary of State